Hollowell Patent Group PLLC

www.hollowellpatent.com

August 1, 2021

By Email

Joseph Palmer
General Manager
Keith-Duarte

Re: Engagement for Prosecution Support, Keith-Duarte Pending Applications

Dear Mr. Palmer:

Thank you for asking Hollowell Patent Group PLLC to support Keith-Duarte in the prosecution of its pending United States patent applications. This letter sets out what we will do, who will do it, what it will cost, and the terms on which we will act. If any part of it does not match what you understood the company to be asking for, please raise it with me before you sign.

The Engagement

The company has asked us to take responsibility for prosecuting the pending United States applications that it identifies to us in writing at or before the start of the engagement, which this letter calls the designated applications. For each designated application we will review the file history, docket every response date and fee window against the records of the United States Patent and Trademark Office, prepare and file responses to office actions, conduct examiner interviews where we judge one likely to help, and handle allowance and issue fee matters on your instruction.

Before any designated application issues, we will give you a written recommendation on whether a continuation should be filed to preserve claim scope that the allowed claims may not reach, so that the company can make that decision while the option still exists. The filing of a continuation or of any other new application would be a separate matter, estimated and agreed in writing before we begin it.

Matters Outside the Engagement

Unless we agree otherwise in writing, the engagement does not include the drafting of new applications, prosecution before patent offices outside the United States, post-grant or inter partes proceedings, litigation, or any opinion on the validity, enforceability, or infringement of any

patent. If such a question arises, we will tell you and will not take it up until its scope and cost are agreed.

How We Will Proceed

We will proceed in three steps, of which the first must be complete before the other two properly begin. First, we will obtain each file history, confirm every pending date against the official record, and enter those dates on our docket. Second, for each open office action we will send you a short summary of the rejections, the response date, and the course we recommend; third, we will prepare each response, send you the draft well before its due date, and file it on your instruction.

If any designated application is now in the care of other counsel, we will file a new power of attorney and request the file, and until the transfer is recorded we will treat its dates as ours to meet.

The Team

Heather Munoz, a Partner in our prosecution group, will lead the engagement, will review every response before it is filed, and will sign any response that changes the scope of a claim. Kelly Snyder, an Associate, will be your day-to-day contact, will prepare most of the responses, and will keep you informed of the docket as dates approach.

Joseph Walker, an Associate, will analyze the references cited in prior art rejections and will prepare the technical side of any examiner interview. I will remain responsible for the firm's relationship with the company and for the terms of this letter, and you should call me directly if anything about the engagement is not working as it should.

We will take instructions from you, as General Manager, or from any person you name to us in writing. We will not act on an instruction that comes from anyone else.

Conflict Check

Before sending this letter we searched our records for any current or former representation adverse to Keith-Duarte, and the search disclosed none. If you know of a competitor, licensee, or other party whose interests could be adverse to the company in this work, please tell us before you sign, so that we can run the search again with that party included.

Fee and Start of Work

Our fee for the work described in this letter is a fixed fee of $39,500. Work will begin on August 11, 2021, provided that by that date we have received a signed copy of this letter and the company's written list of designated applications.

The fixed fee covers our professional services only. Official fees of the Patent and Trademark Office and similar out-of-pocket costs will be billed separately at our cost, and we will not pay an official fee without your prior approval unless it is needed to prevent a loss of rights at a time when we cannot reach you.

Invoices and Payment

We will invoice the fixed fee in equal monthly installments over the expected term of the engagement, together with any official fees and costs advanced during the month, and each invoice is due on receipt. If an invoice remains unpaid when the following month's invoice is issued, we may suspend work, and if the balance then remains unpaid after written notice, we may withdraw, in each case only to the extent the rules of professional conduct permit.

Suspension or withdrawal for nonpayment will not leave a date unattended. Before we stop work for any reason, we will write to you listing every response date and fee deadline then pending in the designated applications, and we will protect those dates until responsibility for them has passed to the company or to other counsel.

Duration and Termination

The engagement runs from the start date until we have completed the work described in this letter, unless it ends earlier. The company may end it at any time by written notice, and we may do so where the rules of professional conduct permit or require, including for nonpayment.

When the engagement ends, for whatever reason, we will send you a closing letter listing every date then pending in the designated applications, and from the date of that letter the company will be responsible for those dates unless we have agreed in writing to continue. Installments invoiced before the end, and official fees already advanced, remain payable.

Confidential Information

We will hold in confidence the invention disclosures, technical documents, and business information that the company gives us, and we will not disclose them outside the company without your consent. Our communications with you about the designated applications will be treated as privileged to the extent the law allows.

There is one limit on that undertaking. The company's inventors and this firm each owe the Patent and Trademark Office a duty to disclose information known to be material to patentability, and if we learn of a reference that must be disclosed, we will tell you and file it.

Limits on Our Responsibility

The outcome of prosecution depends on examiners and on the prior art, neither of which we control, and we cannot promise that any application will be allowed, or that it will issue with claims

of any particular scope or within any particular time. Our recommendations will be professional judgments on the record available to us, and they will be qualified accordingly.

Where the rules of professional conduct allow a limit, the firm's total liability arising out of this engagement will not exceed the fees the company has paid under this letter. Where those rules do not allow a limit, this paragraph does not apply.

Applicable Law

This letter, and any dispute arising out of it or out of the engagement, is governed by the law of the state in which our office is located, without regard to that state's rules on conflicts of law.

Acceptance

If these terms are acceptable, please sign below and return a signed copy to me by email. Once it arrives, Kelly Snyder will send you a short list of the documents we need for intake, beginning with the company's own docket records for the designated applications.

Sincerely yours,

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Mary Bradley
Managing Partner
Date: August 1, 2021

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Joseph Palmer
General Manager, Keith-Duarte
Date: August 1, 2021